

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No RG PC DLNFU

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STIPULATION AND ORDER

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IN THE MATTER OF DISCIPLINARY PROCEEDINGS AGAINST THE LICENSE TO  
PRACTICE PSYCHOTHERAPY IN THE STATE OF COLORADO OF JACK G. NICHOLSON,  
LICENSE NO 1307

Respondent,

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IT IS HEREBY STIPULATED and agreed by and between the State Board of Licensed Professional Counselor Examiners ("Board") and ("respondent"), as follows

1 The Board has jurisdiction over the person of respondent and the subject matter set forth in this Stipulation and Order

2 The Board granted respondent a license to practice psychotherapy in Colorado on November 27, 1995 Respondent was issued license number 1307

3 On or about May 9, 2001 the Board received a complaint against respondent alleging practice below generally accepted standards of practice, dual relationship, and sexual misconduct

4 Following investigation of the complaint the Board determined that reasonable grounds existed to refer this matter to its legal counsel, the Colorado Attorney General, for initiation of disciplinary action regarding respondent's practice of psychotherapy

5 Respondent understands that he has the right to a hearing with respect to the complaint filed against him Respondent further understands and agrees that, by voluntarily and knowingly entering into this Stipulation and Order, he waives his right to a hearing, relieves the Board of its burden of proving a violation of the Colorado Mental Health Statute, gives up his right to present a defense by oral and documentary evidence, and gives up his right to cross-examine witnesses Respondent understands that he has the right to appeal the Board's final order to the Court of Appeals Respondent further understands and agrees that, by voluntarily and knowingly entering into this Stipulation and Order, he waives his right to appeal or otherwise contest the validity of the final Board order entered pursuant to this stipulation

6 Respondent agrees that he freely and voluntarily enters into this agreement including a mental status evaluation, practice monitoring, therapy, and education

7 Respondent admits and agrees as follows

a Respondent entered into a professional and therapeutic relationship with JG as part of his practice of psychotherapy to provide JG with psychotherapy treatment as provided in C R S §12-43-201(9)

b During the course of the therapeutic relationship with JG respondent acted or failed to act in a manner which does not meet generally accepted standards of practice in violation of C R S. §12-43-222(1)(g)

c During the course of the therapeutic relationship respondent maintained a relationship with JG that was likely to impair his professional judgment or increase the likelihood of client exploitation in violation of C R S §12-43-222(1)(i)

d Within six months after the therapeutic relationship ended respondent engaged in sexual contact with JG in violation of C.R S §12-43-222(1)(r)

8 The Board hereby orders that respondent shall provide a complete report from his current treating therapist ("therapist") documenting respondent's compliance with the current treatment program. Following a report by the therapist that respondent is continuing with his current treatment program the Board orders that respondent shall undergo a practice evaluation. The practice evaluation shall be conducted by a Board approved mental health provider ("practice evaluator") who will make a recommendation on respondent's ability to practice psychotherapy in accordance with generally accepted standards of practice, with skill and safety for his clients and if respondent has the necessary qualifications, current ability, and competence to practice psychotherapy. The practice evaluation shall involve all aspects of respondent's proposed practice of psychotherapy and his qualifications, current ability and competence to practice psychotherapy. Should the practice evaluator find that respondent has the qualifications, current ability, and competence to engage in the practice of psychotherapy in accordance with generally accepted standards of practice, with skill and safety for his clients, and the therapy evaluator after the mental status evaluation, described in 8a determines that respondent is in full compliance with his current treatment program, and has been found safe to practice by that evaluation, respondent may practice psychotherapy on probation. Respondent's practice of psychotherapy shall be on probation for a period of three years. While on probation respondent shall not practice psychotherapy unless he has a Board-approved mental health provider who shall monitor his practice of psychotherapy ("practice monitor"). During the period of probation respondent can practice psychotherapy only if he complies with all conditions of the probation and has a practice monitor and therapist in place.

a Respondent shall undergo a mental status evaluation by a Board-approved mental health provider with expertise in sexual misconduct by mental health providers ("therapy evaluator") This evaluation shall be conducted so the therapy evaluator can make findings and recommendations on respondent's potential for rehabilitation, whether he has any condition which may endanger the health or safety of persons under his care, and if respondent can practice psychotherapy with skill and safety for his clients As part of this mental status evaluation the therapy evaluator shall be provided the Board's file and pertinent information on this case Respondent agrees to provide the therapy evaluator with any medical or psychological information requested by the therapy evaluator as part of the evaluation, including information and reports from therapists that he received treatment from following the initiation of this case The therapy evaluator shall provide a written report to the Board setting forth the nature of the evaluation conducted with findings and recommendations on respondent's potential for rehabilitation, whether he has any condition which may endanger the health and safety of persons under his care, and if respondent can practice psychotherapy with skill and safety for his clients

b Should the therapy evaluator find that respondent does not have potential for rehabilitation, has any condition which may endanger the health or safety of persons under his care, or can not practice psychotherapy with skill and safety for his clients, respondent shall not continue the practice of psychotherapy until such time as he receives appropriate treatment and the Board accepts a finding by a Board-approved therapy evaluator that he has potential for rehabilitation, does not have any condition which may endanger the health and safety of persons under his care, and that he can practice psychotherapy with skill and safety for his clients

c Should the practice evaluator determine that respondent can not practice psychotherapy in accordance with generally accepted standards of practice and with skill and safety for his clients, or does not have the appropriate qualifications, current ability, or competence for his proposed practice of psychotherapy respondent shall not continue the practice of psychotherapy until such time as the Board determines he is qualified and safe to practice psychotherapy. Based on the findings and recommendations of the evaluator, the Board shall determine necessary actions that respondent must take and conditions he must meet so that he can become qualified, competent, and safe to practice psychotherapy Once respondent satisfies the Board that he has taken the appropriate actions and met the conditions so that he is qualified, competent, and safe to practice psychotherapy, he may resume the practice of psychotherapy

d Respondent is subject to probation with practice monitoring, therapy, and education During this period of probation respondent can practice psychotherapy only if he complies with the conditions of the probation and has a practice monitor and therapist in place

9. The conditions of respondent's probation are

a Respondent will strictly observe the prohibitions set forth in C.R.S. §12-43-222(1) and assure that he does not engage in any activities that are prohibited activities or fall below generally accepted standards of practice.

b. Respondent's practice of psychotherapy must be monitored by a Board-approved practice monitor, who both monitors his practice and reports in writing to the Board in accordance with this order. The practice monitoring shall be conducted as follows.

(i) Respondent's practice monitor shall monitor all of his cases. The practice monitoring shall consist of individual face-to-face contact between respondent and his practice monitor that occurs for one hour or such longer time as the practice monitor deems necessary for every 20 hours of client contact, but at least once a month. During practice monitoring, respondent and his practice monitor must review and discuss each of respondent's active cases at least once each month to allow the practice monitor to determine whether respondent is practicing psychotherapy in accordance with generally-accepted standards of practice and with skill and safety for his clients.

(ii) The practice monitor is authorized to examine and shall examine such client records and case files maintained by respondent as the practice monitor or the Board deems appropriate and necessary to determine whether respondent is practicing psychotherapy in accordance with generally-accepted standards of practice and with skill and safety for his clients.

(iii) The practice monitor shall report the results of monitoring to the Board in writing and send a copy of each report to the respondent and the therapist. The practice monitor must submit her/his first report on or about the fifth day of the month following the first full month of practice monitoring. The practice monitor shall submit subsequent reports on or about the fifth day of each month thereafter (i.e. on a monthly basis) for the first 12 reports. Following submission of the first twelve reports, unless otherwise directed by the Board, the practice monitor shall submit her/his reports on or about the fifth day of every third month (i.e. on a quarterly basis).

(iv) After the Board's written approval of the practice monitor, respondent and the practice monitor shall enter into a written contract for monitoring. The practice monitor shall provide a copy of that written contract to the Board as part of her/his first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this order and of the Board's file, has read these documents; and understands the duties and responsibilities s/he is undertaking as respondent's practice monitor. The practice monitor shall assure that a written notification is provided to each client informing the client of the name, address and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

(v) If, at any time, the practice monitor is of the opinion that respondent is not practicing psychotherapy in accordance with generally accepted standards of practice or has a condition which renders him unable to treat clients with skill and safety or which may endanger the health or safety of persons under his care, the practice monitor shall report her/his opinion and the basis for that opinion to the Board. The practice monitor shall make that report in writing and within 48 hours of forming her/his opinion. The practice monitor shall send a copy of that report to

the respondent and the therapist when he/she sends the report to the Board. Once such a report is submitted the Board may take reasonable actions pursuant to the statute.

(vi) Either respondent or his practice monitor may terminate the monitoring relationship on written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. In the event respondent does not have another Board-approved practice monitor prior to the termination, respondent shall cease the practice of psychotherapy until he obtains another Board-approved practice monitor. The new practice monitor's responsibilities shall be in accordance with this Stipulation and Order.

(vii) During the period of probation respondent shall not practice psychotherapy without an approved practice monitor in place, other than with written consent of the Board.

c. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing mental health services unless such supervision or consultation is monitored by respondent's practice monitor in accordance with the provisions of paragraph 9b.

d. Respondent shall continue therapy with his current therapists or a Board-approved mental health provider ("therapist") as a term of probation and report to the Board in writing as follows:

(i) The psychotherapy must consist of individual or group therapy sessions, or both, that occur in a frequency to be determined by the therapist, but in no event less frequently than once every week, unless otherwise approved by the Board based on recommendations of the therapist.

(ii) The therapist shall report to the Board in writing both the progress of the therapy and whether respondent is able to practice psychotherapy with reasonable skill and safety for his clients and in accordance with generally accepted standards of practice. A copy of each report shall be sent to the practice monitor and respondent. The therapist shall submit her/his first report by the fifth day of the month following the first full month of the therapy. The therapist shall submit subsequent reports on or about the fifth day of every month thereafter (i.e., on a monthly basis) for the first twelve reports. After the submission of the first twelve reports, unless otherwise ordered by the Board, the therapist shall submit reports on or about the fifth day of every third month thereafter (i.e., on a quarterly basis).

(iii) In the first report, the therapist shall state that s/he has received and read a copy of this Stipulation and Order, the complete Board file and the evaluation. The therapist shall indicate her/his understanding of the duties and responsibilities s/he is undertaking as respondent's therapist.

(iv) If, at any time, the therapist is of the opinion that respondent is practicing psychotherapy in a manner which does not meet the generally accepted standards of practice or has a condition which renders him unable to treat clients with reasonable skill and safety or which may endanger the health or safety of persons under his care, the therapist shall report such opinion and the reasons for that opinion to the Board. The therapist shall make that report, in writing, within 48 hours of forming her/his opinion. The therapist shall send a copy of such report to the practice monitor and respondent when s/he sends the report to the Board. Upon submission of such a report the Board may take reasonable actions pursuant to the Statute.

(v) Either respondent or his therapist may terminate the therapeutic relationship on written notice to the other and the Board no less than 60 days before the date of termination. The notice shall state the reason for the termination. In the event respondent does not have another Board-approved therapist prior to the termination, respondent shall cease the psychotherapy until he has another Board-approved therapist in place. The subsequent therapist shall conduct therapy with respondent and report to the Board in accordance with this Stipulation and Order.

(vi) Respondent cannot practice psychotherapy during the period of probation if he is not undergoing therapy as required by the Stipulation and Order, unless otherwise provided by the Board based on the recommendations of the therapist.

e Respondent shall complete twenty (20) contact hours of Board-approved professional continuing education during each year of probation in the areas of client/therapist boundary and dual relationship issues and other legal/ethical issues related to the practice of psychotherapy. Completion of an approved jurisprudence workshop shall be required as part of this education requirement.

f Respondent must take reasonable steps to assure that his practice monitor and therapist provide reports to the Board.

g Respondent, not the Board, shall be responsible for any costs and/or expenses incurred for mental status evaluation, practice evaluation, practice monitoring, therapy, education, or any other action required in fulfilling the requirements of this order.

h Respondent must provide written notification to every psychotherapy client who he provides any psychotherapy services to while this order is in effect, informing the client of the name, address, and telephone number of his practice monitor. Such notice may be provided in a mandatory disclosure statement.

i During the pendency of this order respondent agrees that he will provide permission to and allow his mental status evaluator, practice evaluator, practice monitor, or therapist to provide medical or psychological information or records to the Board in the event the mental status evaluator, practice evaluator, practice monitor, or therapist determines that respondent is not practicing psychotherapy in accordance with generally accepted standards of practice or has

any condition which renders him unable to treat clients with skill and safety or which may endanger the health or safety of persons under his care. As part of this Stipulation and Order respondent explicitly waives his right to maintain confidentiality of medical and psychological records and information provided to the mental status evaluator, practice evaluator, practice monitor, or therapist if the mental status evaluator, practice evaluator, practice monitor, or therapist determines that he is not practicing psychotherapy in accordance with generally accepted standards of practice or has any condition which renders him unable to treat clients with skill and safety or which may endanger the health or safety of persons under his care. This waiver only applies to material sent directly to the Board and the Board does not have authority to disseminate this information to any individual other than the Board's attorneys

10 All time periods and obligations of the practice monitoring, therapy, and education as stated in this order run only while respondent is engaged in the practice of psychotherapy in Colorado under the monitoring of a Board-approved practice monitor and in therapy with a Board-approved therapist. They are tolled and suspended at all other times.

11 If respondent discontinues the practice of psychotherapy in Colorado, he shall notify the Board, in writing, within thirty (30) days of ceasing practice. This notification shall include the date he ceased practicing and his new address if he has moved.

12 In the event respondent resumes his practice of psychotherapy in Colorado after stopping practice as described in paragraph 11, he shall provide written notification to the Board prior to resuming the practice of psychotherapy in Colorado. Such notification shall include his address and the date on which he intends to resume the practice of psychotherapy.

13 As used in this Stipulation and Order, the terms "psychotherapy services", "practice of psychotherapy", and "engaged in the practice of psychotherapy" have the same meaning and scope as the term "psychotherapy" as defined in C.R.S. § 12-43-201(9).

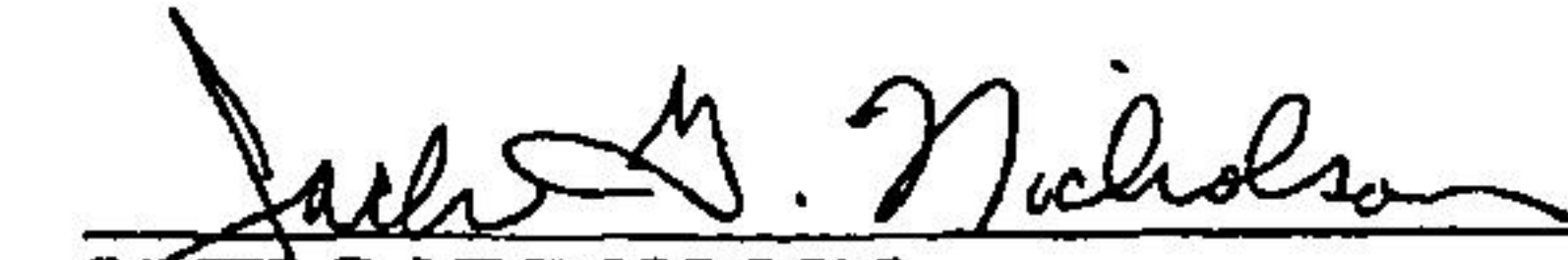
14. No agreement, understanding, representation, or interpretation not contained in this order may be used to vary or to contradict its terms.

15 Each party shall bear its own costs, shall pay its own witness fees, and shall pay its own attorney fees.

16 Each provision of this order is separate. In the event of litigation involving compliance with the terms of this order, the issues will be restricted to those raised by the interested parties; the resolution of those issues will affect only the pertinent parts of the order, and the parties will be obligated by the judicially-construed parts of the order as if they were part of the original order.

17. This Stipulation and Order shall take effect on acceptance and signature by the Board.

18 This Stipulation and Order is a public record

  
JACK G NICHOLSON  
Respondent

DATED 10/3/01

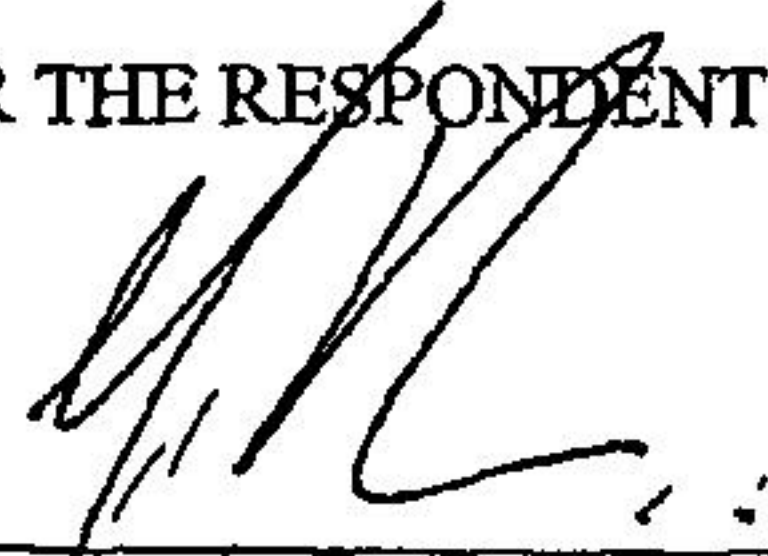
ACCEPTED, SIGNED, AND ORDERED this 24<sup>th</sup> day of October, 2001

STATE BOARD OF LICENSED PROFESSIONAL  
COUNSELOR EXAMINERS

  
TOM GRAVES, ED.D LPC  
Board Chair

APPROVED AS TO FORM

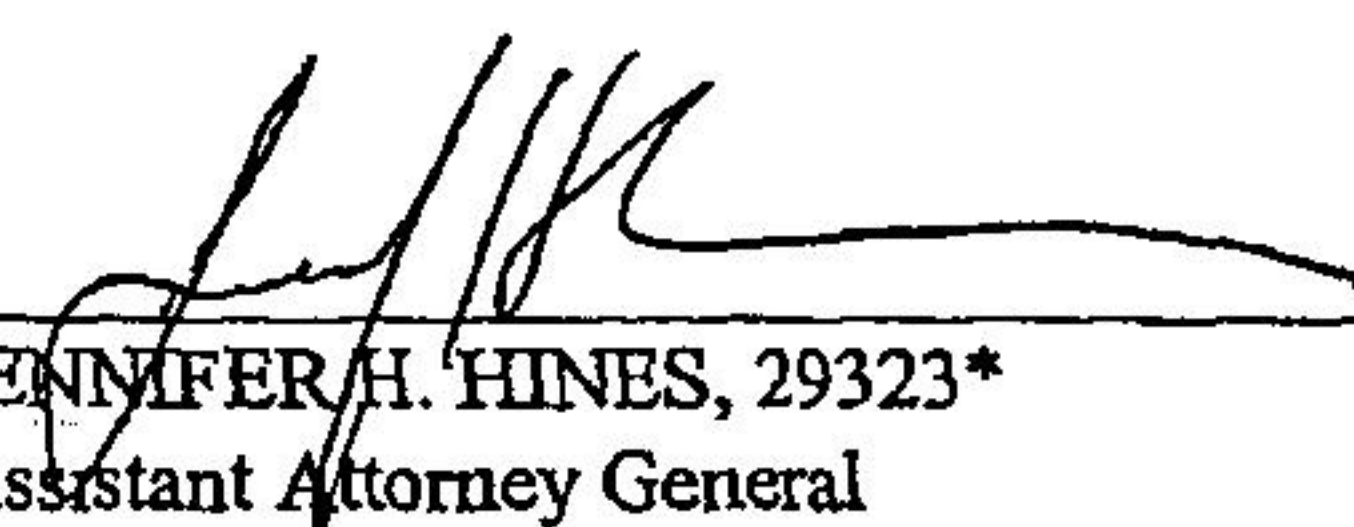
FOR THE RESPONDENT.

  
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